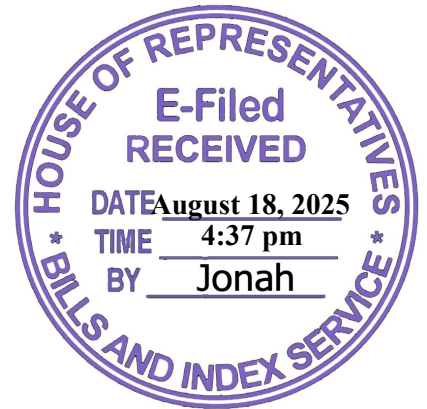


Republic of the Philippines
HOUSE OF REPRESENTATIVES
Quezon City

TWENTIETH CONGRESS
First Regular Session

House Bill No. **3823**



Introduced by **REP. JAVIER MIGUEL L. BENITEZ**

EXPLANATORY NOTE

The rapid development of deepfake technology has created urgent challenges for privacy, dignity, and public trust. While deepfakes can be used for legitimate purposes such as satire, research, and artistic expression, they are increasingly being weaponized to deceive, defraud, defame, and incite violence.

In the Philippines, the widespread use of social media and the internet has magnified information security risks such as blackmail and revenge pornography, which cause severe humiliation and degradation by sharing private and intimate images without consent.

Many scholars suggest that portraying a person in ways they would not consent to violates personal autonomy and dignity,¹ and that such unauthorized use of one's likeness infringes on the right to privacy and strains personal and professional relationships.² A study warns that the rapid accessibility of deepfake tools erodes public trust and demands proactive legal safeguards.³

¹ de Ruitter, A. (2021). The Distinct Wrong of Deepfakes. *Philosophy & Technology*, 34(4), 1311-1332. <https://doi.org/10.1007/s13347-021-00459-2>. (Date last accessed: August 12, 2025).

² Singh, P., et al. (2023). Exploding AI-Generated Deepfakes and Misinformation: A Threat to Global Concern in the 21st Century. https://papers.ssrn.com/sol3/papers.cfm?abstract_id=4651093. (Date last accessed: August 12, 2025).

³ Fruto, K., et al. (2025). The Truth Behind Fakes: Deep Insights of Deepfake Technology. *Universe International Journal of Interdisciplinary Research*. Vol. 5, Issue 10. <https://doi-10.24127/24187786/UIJIR>. (Date last accessed: August 12, 2025).

The 1987 Philippine Constitution protects the right to privacy⁴ and the dignity of every person,⁵ while obligating the State to promote the general welfare⁶ and secure public order.⁷ Existing laws, including the Republic No. 10175 (2012), or the Cybercrime Prevention Act of 2012, and the Republic No. 10175 (2012), or the Data Privacy Act of 2012, do not specifically address the harms uniquely caused by deepfakes, leaving a significant gap in legal protection.

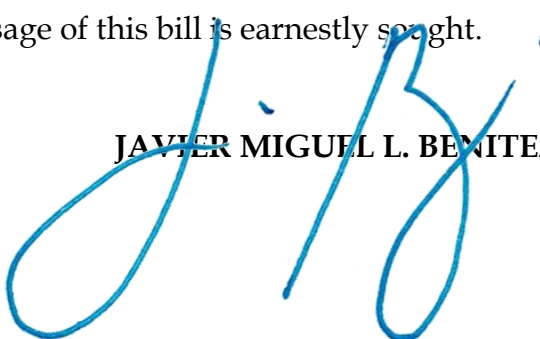
This bill, the *Deepfake Accountability and Transparency Act*, seeks to fill this gap by:

- (a) requiring clear disclosures for any deepfake content;
- (b) prohibiting harmful deepfakes, tampering with disclosures, and malicious uses such as fraud, defamation, and incitement to violence; and
- (c) providing exemptions for satire, parody, research, and consensual content.

Violations of this Act will be met with substantial fines and imprisonment to deter malicious actors. The Department of Information and Communications Technology (DICT), in coordination with the Department of Science and Technology (DOST), Department of Trade and Industry (DTI), and Department of Justice (DOJ), is tasked with issuing implementing rules to ensure effective enforcement in a fast-evolving technological landscape.

Towards this end, this measure affirms the State's constitutional mandate to protect dignity, privacy, and security, and ensures that emerging technologies, such as deepfakes, are harnessed responsibly. It is a necessary safeguard for the Filipino people in the digital age.

In view of the foregoing, the passage of this bill is earnestly sought.


JAVIER MIGUEL L. BENITEZ

⁴ 1987 Constitution, Article III, Section 3.

⁵ 1987 Constitution, Preamble; Article II, Section 11.

⁶ 1987 Constitution, Article II, Section 9.

⁷ 1987 Constitution, Article II, Section 5.

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House Bill No. 3823

Introduced by **REP. JAVIER MIGUEL L. BENITEZ**

**AN ACT PROMOTING ACCOUNTABILITY AND TRANSPARENCY IN
THE CREATION, DISCLOSURE, AND DISTRIBUTION OF
ARTIFICIALLY MANIPULATED MEDIA (DEEPPAKES),
PROTECTING INDIVIDUAL DIGNITY AND PRIVACY, DEFINING
PROHIBITED ACTS, PROVIDING PENALTIES, AND FOR OTHER
PURPOSES**

*Be it enacted by the Senate and the House of Representatives of the Philippines in
Congress assembled:*

SECTION 1. *Short Title.* - This Act shall be known as "*Deepfake
Accountability and Transparency Act.*"

SEC. 2. *Declaration of Policy.* - It is the policy of the State to protect the
dignity, privacy, and security of individuals from the harmful use of artificial
intelligence technologies, particularly deepfake media. The State shall promote
transparency and accountability in the creation and dissemination of such
content.

SEC. 3. *Definition of Terms.* - For purposes of this Act, the following
terms shall mean:

(a) *Deepfake* - Any media that appears to depict, with realistic likeness, a
person's speech or conduct that they did not engage in, generated substantially
through technical means, including artificial intelligence, machine learning, or
digital manipulation.

(b) *Harmful Deepfake* – A deepfake created or distributed with the intent to deceive, defraud, or harm an individual or the public.

(c) *Disclosure* – A clear and conspicuous statement indicating that content has been digitally altered.

SEC. 4. *Mandatory Disclosure Requirements.* – Any person or entity that produces or distributes deepfake content shall ensure a clear, visible, and/or audible disclosure is included, depending on the media format:

(a) Visual Content: A written disclosure prominently displayed.

(b) Audio Content: A verbal statement at the beginning of the recording.

(c) Audiovisual Content: Both written and verbal disclosures, where applicable.

The disclosure must state that the content is altered and specify the nature of the alteration.

SEC. 5. *Prohibited Acts.* – It shall be unlawful to:

(a) Create or distribute a harmful deepfake without proper disclosure;

(b) Remove, alter, or tamper with required disclosures;

(c) Use deepfake technology to defame, deceive, commit fraud, or incite violence;

(d) Obtain consent through coercion, deception, or misrepresentation for creating a deepfake.

SEC. 6. *Exemptions.* – This Act shall not apply to:

(a) Content created for satire, parody, or artistic expression, provided it contains appropriate disclosure;

(b) Deepfakes created for educational or research purposes, with disclosure;

(c) Content where the individual depicted has given explicit, verifiable, and informed consent in written form.

SEC. 7. *Penalties.* - Any person who violates section 5(a) or 5(b) shall face a fine ranging from Two Million (P2,000,000.00) to Five Million (P5,000,000.00), and/or imprisonment of 6 to 12 years.

Those who commit harmful deepfake acts under section 5(c) shall face a fine of Five Million (P5,000,000.00) to Ten Million (P10,000,000.00), and/or imprisonment of 12 to 20 years.

SEC. 8. *Implementing Rules and Regulations.* - The Department of Information and Communications Technology (DICT), in coordination with the Department of Science and Technology (DOST), the Department of Trade and Industry (DTI), and the Department of Justice (DOJ) shall promulgate rules and guidelines to ensure the effective implementation of this Act.

SEC. 9. *Appropriations.* - The amount necessary to carry out the provisions of this Act shall be included in the annual General Appropriations Act.

SEC. 10. *Separability Clause.* - If any part or provision of this Act is declared invalid or unconstitutional, the remaining parts not affected shall remain in full force and effect.

SEC. 11. *Repealing Clause.* - All laws, decrees, orders, rules, and regulations inconsistent with this Act are hereby repealed or modified accordingly.

SEC. 12. *Effectivity.* - This Act shall take effect fifteen (15) days after its publication in the Official Gazette or in at least two (2) newspapers of general circulation.

Approved,